

Multiple Choice (10 marks)

1. Where a client accepts the services of an attorney without an agreement concerning the amount of the fee, there is
 - (a) An implied-in-fact contract.
 - (b) An implied-in-law contract.
 - (c) An express contract.
 - (d) No contract.
2. Which of the following is not a warrantless search exception?
 - (a) Cold pursuit
 - (b) Incident to a lawful arrest
 - (c) Plain view
 - (d) Stop and frisk
3. With the intent to commit a felony therein.
 - (a) Contingent remainders
 - (b) Executory interests
 - (c) Vested remainders subject to open
 - (d) Reversions
4. There is a grand jury proceeding underway for a local businessman. What is not true about grand jury proceedings?
 - (a) The proceedings are conducted in secret.
 - (b) There is no right to counsel.
 - (c) There is a right to Miranda warnings.
 - (d) There is no right to have evidence excluded.
5. Which of the following is a legislative act that inflicts punishment without a trial?
 - (a) Bill of attainder
 - (b) Ex post facto law
 - (c) Statutes
 - (d) Ordinances

True / False (10 marks)

Answer True or False

6. True or False: The necessary and proper power, standing alone, cannot support the enactment of federal law without another enumerated power.
7. True or False: An irrevocable written offer is valid for six months if consideration is provided by the offeree.
8. True or False: A defendant who is deaf may not be held to the standard of care expected of a reasonable person regarding auditory warnings.
9. True or False: The denial of certain fundamental rights to some individuals while granting them to others constitutes an equal protection problem.
10. True or False: The best evidence rule applies universally to all situations involving documentary evidence in legal proceedings.

Long Form Response (20 marks)

Answer each question with a clear and complete explanation.

11. Discuss the constitutional requirements for terminating a parent's custody rights and welfare benefits, focusing on the necessity of prior notice and evidentiary hearings.
12. Discuss the legal implications and rules governing bidding at auctions, specifically focusing on a bidder's right to retract a bid before the auction concludes.

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